

25VECV05861 25VECV05861

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25VECV05861 GONZALEZ V VALLARTA

[TENTATIVE] ORDER: Plaintiff Sandra

Gonzalez's Motion to Compel Further Responses to Requests for Production of Documents, Set One, is GRANTED IN PART and DENIED IN PART as follows. The request to compel Defendant Vallarta Food Enterprises, Inc. to serve the documents it withheld in response to Request for Production of Documents, Nos. 1, 7, and 13 is GRANTED. Defendant Vallarta Food Enterprises, Inc. is ordered to serve those documents within 20 days. The request to compel further responses is otherwise DENIED. Plaintiff Sandra Gonzalez's request for monetary sanctions is GRANTED against Defendant Vallarta Food Enterprises, Inc. and its counsel, jointly and severally, in the amount of \$2,535 payable pursuant to CCP section 2023.010 for discovery abuse without substantial justification, payable by 7/31/2026 to the client trust account of plaintiff's counsel at his address of record.

Introduction

Plaintiff Sandra Gonzalez (Plaintiff)

moved to compel further responses to Requests for Production of Documents, Set One (RFP), Nos. 1, 6, 7, and 13, against Defendant Vallarta Food Enterprises, Inc. (Defendant). Plaintiff further requested monetary sanctions of \$4,650 against Defendant and its counsel, Homan, Stone & Rossi, APC. Defendant filed an opposition, and Plaintiff filed her reply. The parties met and conferred as required by relevant statutes. They also participated in an Informal Discovery Conference on April 28, 2026.

Discussion

A motion to compel further responses to RFPs must set forth specific facts showing good cause justifying the discovery sought. (Code Civ. Proc., sec. 2031.310, subd. (b)(1).)

- RFP No. 1: “Any and all DOCUMENTS which refer or relate to the INCIDENT.”

- RFP No. 7: “Please produce any and all DOCUMENTS prepared by any witness who was present at the scene of the INCIDENT.”

The request to compel further responses to RFP Nos. 1 and 7 is GRANTED. Plaintiff argues that, in response to the RFPs, Defendant has refused to produce a Customer Incident Report and/or employee witness statements drafted on August 10, 2025, the date of Plaintiff’s slip and fall incident. (Separate Statement, pp. 1:9-10, 4:11-12; Opposition, Exh. E – a copy of the Privilege Log.) Defendant argues that the incident report and employee statements fall under the attorney-client privilege and were prepared in anticipation of litigation. The attorney-client privilege “attaches to a confidential communication between the attorney and the client and bars discovery of the entire communication, including unprivileged material.’ [Citation.]” (Johnson v. Department of Transportation (2025) 109 Cal.App.5th 917, 935.) “The party claiming the privilege has the burden of establishing the preliminary facts necessary to support its exercise, i.e., a communication made in the course of an attorney-client relationship. [Citations.] Once that party establishes facts necessary to support a prima facie claim of privilege, the communication is presumed to have been made in confidence and the opponent of the claim of privilege has the burden of proof to establish the communication was not confidential or that the privilege does not for other reasons apply.’ [Citation.]” (Ibid.) The Court finds that Defendant has failed to meet its initial burden of showing that the incident report and employee witness statements constitute communications between a client and an attorney. According to the privilege log, the report and statements were prepared on August 10, 2025, the date Plaintiff alleges her slip-and-fall incident occurred. Defendant has not submitted any evidence (e.g., defense counsel’s declaration) showing that (1) on the date of the incident, Defendant had hired an attorney, and (2) the incident report and employee statements were prepared upon the attorney’s request. In

addition, as Plaintiff argues, the California Supreme Court has held: "When an employee has been a witness to matters which require communication to the corporate employer's attorney, and the employee has no connection with those matters other than as a witness, he is an independent witness; and the fact that the employer requires him to make a statement for transmittal to the latter's attorney does not alter his status or make his statement subject to the attorney-client privilege" (D. I. Chadbourne, Inc. v. Superior Court of City and County of San Francisco (1964) 60 Cal.2d 723, 737.) Therefore, the request to compel further responses to RFP No. 1 is granted.

- RFP No. 6: "Each and every DOCUMENT which refers or relates to, or evidences, any liquid that was located on or within 100 feet of the INCIDENT, between two hours before and two hours after the INCIDENT."

The request to compel further responses to RFP No. 6 is DENIED. Plaintiff argues that Defendant has not produced: "All surveillance video footage responsive to the request (only a curated excerpt [was] produced)." (Separate Statement, p. 2:19-20.) However, Defendant served a code-compliant response stating that it has, in fact, produced all video surveillance in its possession, custody, and control. (Opposition, p. 3:15-18.) Defendant's response was sufficient. Therefore, the Court denies the request to compel further response to RFP No. 6.

- RFP No. 13. Each and every DOCUMENT which refers or relates to Plaintiff.

The request to compel further response to RFP No. 13 is GRANTED. Plaintiff argues that Defendant is withholding the August 10, 2025 Customer Incident Report and "ISO Claim Search/prior-claims report" responsive to the RFP. The Court has already granted Plaintiff's request to compel production of the Customer Incident Report. As for the ISO Claim Search, Defendant argues that the information in that report is equally available to Plaintiff because it is public information. (Opposition, p. 6:7-8.) In support of that argument, Defendant cites Code of Civil Procedure section 2030.220, which concerns interrogatories, not RFPs. The Court finds Defendant's response to RFP No. 13 was not code-compliant with regard to the ISO Claim Search document. (See Code Civ. Proc., §

2031.210, subd. (a) ["The party to whom a demand for inspection, copying, testing, or sampling has been directed shall respond separately to each item or category of item by any of the following: ¶ (1) A statement that the party will comply with the particular demand for inspection, copying, testing, or sampling by the date set for the inspection, copying, testing, or sampling pursuant to paragraph (2) of subdivision (c) of Section 2031.030 and any related activities. ¶ (2) A representation that the party lacks the ability to comply with the demand for inspection, copying, testing, or sampling of a particular item or category of item. ¶ (3) An objection to the particular demand for inspection, copying, testing, or sampling"].)

Therefore, the Court grants the request to compel further responses to RFP No. 13.

Plaintiff seeks sanctions of \$2,600 against Defendant and its counsel. The Court finds the requested sanctions excessive because the Court has denied the request to compel further response to one RFP (No. 6). The amount of time to prepare this relatively simple motion has been reduced to 5.5 hours at the reasonable rate of \$450 plus \$60 filing fee for a total of \$2,535 payable to the Client Trust Account of counsel for moving party at the address of record by 7/31/2026 for discovery abuse without substantial justification.

IT IS SO ORDERED, CLERK TO GIVE NOTICE